

STATE OF NEW YORK

8313--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. ANDERSON -- read once and referred to the Committee on Housing -- recommitted to the Committee on Housing in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public housing law, in relation to providing trainings and information to residents regarding resident management corporations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public housing law is amended by adding a new section 402-i to read as follows:

§ 402-i. Resident management corporations. 1. For the purposes of this section, "resident management corporation" means a corporation made up of residents of a housing authority. Such resident management corporation:

(a) shall be a nonprofit organization validly incorporated under the laws of the state in which it is located;

(b) may be established by more than one resident council if such council:

(i) approves the establishment of the corporation; and

(ii) has representation on the board of directors of such corporation;

(c) shall have an elected board of directors with elections held at least once every three years;

(d) shall have by-laws that:

(i) require the board of directors to include resident representatives of each resident council involved in establishing the corporation;

(ii) include qualifications to run for office;

(iii) include the frequency of elections;

(iv) include procedures for recall; and

(v) term limits, if desired;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (e) shall have voting members that are heads of households and other
2 residents that are at least eighteen years of age and are listed on the
3 lease agreement for a unit represented by such resident management
4 corporation;

5 (f) shall be approved by the resident council board and a majority of
6 the residents if a resident council already exists. If there is no resi-
7 dent council, a majority of the residents of the public housing develop-
8 ment such corporation will represent shall approve the establishment of
9 such corporation; and

10 (g) may serve as both the resident management corporation and the
11 resident council if such corporation meets the requirements of this part
12 for a resident council.

13 2. The New York city housing authority shall provide information and
14 trainings to all residents of such authority's properties regarding the
15 formation of resident management corporations, the requirements of such
16 corporations, and the potential benefits of creating such corporations.

17 3. The division of housing and community renewal shall provide the New
18 York city housing authority with two million dollars to effectuate the
19 provisions of this section.

20 § 2. This act shall take effect on the one hundred twentieth day after
21 it shall have become a law. Effective immediately, the addition, amend-
22 ment and/or repeal of any rule or regulation necessary for the implemen-
23 tation of this act on its effective date are authorized to be made and
24 completed on or before such effective date.